

Stakeholder consultation on the Draft Guidelines on the classification of high-risk AI systems under Article 6 of the AI Act

Fields marked with * are mandatory.

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Disclaimer: This document is a working document of the AI Office for the purpose of consultation and does not prejudice the final decision that the Commission may take on the final guidelines. The responses to this consultation paper aim to provide relevant stakeholder input to the Commission when finalising the guidelines.

This consultation is targeted to stakeholders of different categories. These categories include, but are not limited to, providers and deployers of (high-risk) AI systems, other industry organisations, as well as academia, other independent experts, civil society organisations, and public authorities and the citizens.

The Artificial Intelligence Act (the 'AI Act'), which entered into force on 1 August 2024, creates a single market and harmonised rules for trustworthy and human-centric Artificial Intelligence (AI) in the EU. It aims to promote innovation and uptake of AI, while ensuring a high level of protection of health, safety and fundamental rights, including democracy and the rule of law.

The AI Act follows a risk-based approach classifying AI systems into different risk categories, one of which is the high-risk AI systems (Chapter III of the AI Act).

The AI Act distinguishes between two categories of AI systems that are considered as 'high-risk', as set out in Article 6(1) and 6(2) AI Act. Article 6(1) AI Act covers AI systems that are embedded as safety components in products or that themselves are products covered by Union legislation in Annex I, which could have an adverse impact on health and safety of persons. Article 6(2) AI Act covers AI systems that in view of their intended purpose are considered to pose a significant risk to health, safety or fundamental rights. The AI Act lists eight areas in which AI systems could pose such significant risk to health, safety or fundamental rights in Annex III and, within each area, lists specific use-cases that are to be classified as high-risk. Article 6(3) AI Act provides for exemptions for AI systems that are intended to be used for one of the use-cases listed in Annex III, but which do not pose significant risk since they fall under one of the exceptions listed in Article 6(3) AI Act.

With the [AI Omnibus](#) the entry into application of the requirements and obligations for high-risk AI systems under Article 6(2) and Annex III will be postponed to 2 December 2027. As regards the AI systems under Article 6(1) and Annex I the rules will apply from 2 August 2028. Other changes introduced to the classification rules under Article 6(1) and the definition of a 'safety component' are considered in the draft guidelines.

The draft Guidelines relate exclusively to the classification of high-risk AI systems. Further guidance from the Commission will follow, as indicated in the list of forthcoming guidelines published under: [Supporting the implementation of the AI Act with clear guidelines | Shaping Europe's digital future](#).

The draft Guidelines are prepared pursuant to Article 6(5) AI Act and focus on the rules for the high-risk classification. It is further required that these draft Guidelines should be accompanied with a comprehensive list of practical examples of use-cases of AI systems that are high-risk and not high-risk.

These draft Guidelines take into account the outcome of a stakeholder consultation organised by the Commission in June-July 2025 and input provided by the Member States in the context of the European Artificial Intelligence Board ('AI Board').

In addition to the written consultation process, the AI Office organised a series of targeted stakeholder workshops in December 2025 in order to gather further practical and sector-specific feedback on the draft Guidelines.

To complement these discussions and ensure the inclusion of a broad range of stakeholders, including representatives from industry, academia, civil society, public authorities and other relevant organisations, the AI Office also circulated a follow-up questionnaire aimed at collecting additional written input on specific aspects of the high-risk classification framework and its practical application.

On the basis of this input, the Commission prepared the draft guidelines which are now open for stakeholder feedback.

This second consultation accompanies the draft Guidelines on the classification of high-risk AI systems under Article 6 AI Act that aim to support consistent interpretation and effective implementation of the AI Act classification rules for high-risk AI systems across the EU.

This consultation seeks to collect targeted feedback on the clarity, completeness and practical usability of the draft Guidelines prepared by the Commission based on broad stakeholder input.

In particular, the Commission seeks feedback on whether the explanations, methodologies and examples provided sufficiently support stakeholders in determining whether an AI system qualifies as high-risk under the AI Act.

The draft Guidelines address the classification of high-risk AI systems in accordance with Article 6 AI Act and are structured as follows:

- **Section I** presents an introduction outlining the purpose, scope and legal context of the draft Guidelines. It recalls the objectives and risk-based structure of the AI Act, situates the concept of high-risk AI systems within that framework, and explains the legal basis and role of the draft Guidelines pursuant to Article 6(5) AI Act.
- **Section II** sets out general principles for the classification of high-risk AI systems, including the requirement that the system qualifies as an AI system and the role of the intended purpose for its classification.
- **Section III** explains the classification of high-risk AI systems under Article 6(1) AI Act and Annex I, including the key elements (such as the notion of a safety component and third-party conformity assessment).
- **Section IV** addresses the classification of high-risk AI systems under Article 6(2) AI Act and Annex III, including:

horizontal issues applicable across Annex III use cases (such as human involvement, the “intended to be used” criterion, and the interaction with national and EU law);

the application of the filter mechanism under Article 6(3) AI Act, including its conditions, exceptions, and safeguards;

detailed guidance on each high-risk use case listed under the eight areas in Annex III (biometrics; critical infrastructure; education and vocational training; employment; access to essential private and public services; law enforcement; migration, asylum and border control management; and administration of justice and democratic processes).

- **Section V** explains the transitional and grandfathering provisions of the AI Act, clarifying the entry into application of the high-risk AI system requirements and the conditions under which AI systems placed on the market or put into service before the relevant application dates remain subject to the new obligations.

All participants are invited to provide feedback on the particular sections of the draft Guidelines they are

interested in. In particular, respondents are encouraged to focus on:

- whether specific sections or subsections require further clarification or refinement to ensure effective implementation and compliance; and
- whether additional or current examples or use-cases should be included or excluded, taking into account the legal provisions of the AI Act.

The feedback collected through this consultation will support the Commission in refining and finalising the draft Guidelines, with the objective of ensuring they are clear, comprehensive, and practically useful for all stakeholders involved in the development, deployment and supervision of AI systems under the AI Act.

As not all sections may be relevant for all stakeholders, respondents may reply only to the section(s) they would like. Respondents are encouraged to provide **explanations and practical cases** as part of their responses to support the practical usefulness of the draft Guidelines. We kindly ask that the respondents to specify the exact section and paragraph of the draft Guidelines to which their comments refer.

The consultation also aims to collect input for the annual review of the list of prohibitions (Article 5 AI Act) and the high-risk use cases in Annex III AI Act to inform the Commission review pursuant to Article 112(1) AI Act.

The targeted consultation is available in **English only** and will be **open for 5 weeks starting on 19 May until 23 July 2026 (22:00 CET)**.

All contributions to this consultation may be made publicly available. Therefore, please do not share any personal or confidential information in your contribution (your written feedback). It is your responsibility to avoid personal data and any reference in your written feedback itself that would reveal your identity.

For information on how the Commission processes your personal data please read our Privacy Statement

[20250122_Public_Consultation_classification_of_high-risk_AI_systems_PrivacyStatement.pdf](#)

Information about the respondent

* First name

Adam

* Surname

Herma

* Email address

herma@ochrance.cz

* Do you agree that we may publish your identity together with your contribution in the instance that all contributions are made publicly available?

If you act in your personal capacity: All contributions to this consultation may be made publicly available. You can choose whether you would like your details to be made public or to remain anonymous. The respondent category that you selected for this consultation, your answer regarding residence, and your contribution may be published as received. Should you choose to remain anonymous, your name will not be published. Please do not include any personal data in the contribution itself.

If you represent one or more organisations: All contributions to this consultation may be made publicly available. You can choose whether you would like respondent details to be made public or to remain anonymous. Only the following organisation details may be published: The respondent category that you selected for this consultation, the name of the organisation on whose behalf you reply as well as its size, its presence in or outside the EU and your contribution as received. Should you choose to remain anonymous, your name will not be published. Please do not include any personal data in the contribution itself if you want to remain anonymous.

- ☒ Yes
☐ No

* Do you agree that we may contact you in the event of follow-up questions or if we want to learn more about your responses?

- ☒ Yes
☐ No

* Do you represent an organisation (e.g., a public organisation, a company, a think tank or a civil society /consumer organisation) or act in your personal capacity (e.g., independent expert)?

- ☒ Organisation
☐ In a personal capacity

* If you are representing an organisation, please specify the name of the organisation:

Office of the Public Defender of Rights and Defender of Children's Rights

* Type of organisation

Other

* Is a representation of the organisation located in the EU?

- ☒ The organisation's headquarter is located in the EU
- ☐ A branch office, or any representation of the organisation is located in the EU
- ☐ None of the representations of the organisation is located in the EU

* Select the EU Member State where the organisation's headquarter, or representation is located

CZ - Czechia

* Select the size of the organisation

Medium (50-249 employees)

* Sector(s) of activity

- | | | |
|---|--|---|
| ☒ Information technology | ☒ Employment | ☒ Transport |
| ☒ Public administration | ☒ Education and training | ☒ Telecommunications |
| ☒ Law enforcement | ☒ Consumer services | ☒ Retail |
| ☒ Justice sector | ☒ Business services | ☒ E-commerce |
| ☒ Legal services sector | ☒ Banking and finances | ☒ Advertising |
| ☒ Cultural and creative sector, including media | ☒ Manufacturing | ☒ Consumer protection |
| ☒ Healthcare | ☒ Energy | ☐ Others |

* Describe the activities of your organisation or yourself

1300 character(s) maximum

Czech NHRI

* **On which part(s) of the draft Guidelines would like comment?** *Multiple answers are possible. Please note that selecting a particular answer will direct you to a set of questions specifically related to subject specified.*

- ☐ **General principles for classification of high-risk AI systems under Article 6.** (Section II)
- ☐ **High-risk classification according to Article 6(1) – Annex I.** (Section III)
- ☒ **High-risk classification according to Article 6(2) – Annex III.** (Section IV)
- ☐ **Questions in relation to Article 112 paragraph 1 (Evaluation and Review)**

High-risk classification according to Article 6(2) – Annex III (Section IV of the draft Guidelines)

Select the relevant subsection(s):

- ☐ IV.1 Rationale and approach
- ☒ IV.2 Horizontal issues applicable to Annex III use cases
- ☒ IV.3 High-risk AI systems in the areas of Annex III

IV.2 Horizontal issues applicable to Annex III use cases

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
- ☐ No
- ☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

70

Please specify

500 character(s) maximum

The Guidelines should explicitly recognize automation bias as a significant risk to effective human oversight. Evidence shows that HR managers under time pressure tend to rely on AI recommendations, especially where algorithmic reasoning is not interpretable, resulting in rubber-stamping rather than independent assessment. Assuming that human discretion alone provides an effective safeguard is therefore unrealistic and should be reconsidered.

Do you have more suggestions?

- ☒ Yes
- ☐ No

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
- ☐ No
- ☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

88

Please specify

500 character(s) maximum

Guidelines mention that 1) filter mechanism benefit depends on a self-assessment by the provider and 2) the conditions must be interpreted narrowly. The more urgent language is needed in this case. The high-risk systems exceptions should be interpreted extremely restrictively to limit the possibility that providers will self-assess their systems as "purely preparatory" or "narrowly procedural" to evade compliance with the high risk rules. We highlight some of the cases in further comments.

Do you have more suggestions?

- ☐ Yes
☐ No

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

- ☐ Yes
☐ No
☐ N/A

IV.3 High-risk AI systems in the areas of Annex III

Please select the sector(s) you wish to comment on. *Multiple answers are possible*

- ☒ 3.1 Biometrics
☐ 3.2 Critical infrastructure
☒ 3.3 Education and vocational training
☒ 3.4 Employment, workers' management and access to self-employment
☒ 3.5 Access to and enjoyment of essential private services and essential public services and benefits
☒ 3.6 Law enforcement
☒ 3.7 Migration, asylum and border control management
☐ 3.8 Administration of justice and democratic processes

3.1 Biometrics

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

170

Please specify

500 character(s) maximum

It's not apparent why the AI systems that infer age or gender (attributes or characteristics not sensitive or protected under Article 9(1) GDPR) aren't deemed worthy of high-risk classification too. Significant risks these systems pose to for example non-discrimination are in this case comparable.

Do you have more suggestions?

- ☐ Yes
- ☐ No

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

- ☐ Yes
- ☐ No
- ☐ N/A

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☐ Yes
- ☐ No
- ☐ N/A

Do you have more suggestions?

- ☐ Yes
- ☐ No

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

- ☐ Yes
- ☐ No
- ☐ N/A

3.3 Education and vocational training

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☐ Yes
- ☐ No
- ☐ N/A

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act? If so, please explain why you think they

should be treated as such, in order to help the Commission refine the draft Guidelines and ensure they are comprehensive.

- ☒ Yes
☐ No
☐ N/A

If so:

a) please explain why do you think they should be treated as such and

b) if your suggested example(s) or use case(s) are to be considered as in or out of scope.

2500 character(s) maximum

(224) Focusing only on point-in-time risks like grading fails to address AI's long-term impacts. Exempting adaptive learning and generative AI contradicts UNESCO and Council of Europe warnings. School over-reliance on LLMs drives cognitive degradation, eroding critical thinking and creating psychological dependence. For these reasons, AI systems intended for adaptive learning should not be excluded from Annex III where they may materially affect pupils' cognitive development and educational opportunities. Guidelines must interpret Annex III broadly to cover long-term developmental harms and threats to cognitive autonomy, instead of restricting focus to immediate administrative decisions.

(235) The guidelines must ensure that the Article 6(3) filter mechanism is interpreted extremely narrowly to prevent dangerous loopholes, as repeatedly warned by the EU Agency for Fundamental Rights (FRA). Relying heavily on provider self-assessment creates a massive risk of circumvention. Commercial entities will intentionally mislabel their AI systems as "purely preparatory" or "narrowly procedural" simply to evade strict high-risk compliance and conformity assessments.

The example in the guidelines regarding identity verification during tests is deeply flawed and underscores this danger. Labeling biometric student authentication as a "purely procedural task" dangerously downplays the real-world impact. If an algorithmic error falsely locks a student out of a high-stakes state exam, the consequences are immediate and devastating, leading to severe stress and missed career opportunities. This outcome is just as harmful as any high-risk decision.

The guidelines must explicitly state that automated access-control and identity verification for high-stakes testing cannot be exempted under Article 6(3).

3.4 Employment

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

255

Please specify

500 character(s) maximum

The guidelines' focus on developer-employer relations ignores the social dimension of work. International standards stress that early trade union involvement is vital. While AI Act Article 26(7) mandates informing worker representatives, the guidelines offer no methodology on what clear information must be shared. They also fail to address how personalized algorithmic contracts disrupt collective bargaining. Section 3.4 must rectify this omission.

Do you have more suggestions?

- ☐ Yes
☐ No

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

- ☒ Yes
☐ No
☐ N/A

If so:

- a) please explain why do you think they should be treated as such and
b) if your suggested example(s) or use case(s) are to be considered as in or out of scope.

2500 character(s) maximum

(p. 70 and 78) Article 6(3)(d) must be interpreted restrictively. The current examples are framed too broadly. AI systems intended for recognizing and organizing information in CVs may embed technical bias during data extraction, excluding vulnerable applicants (e.g. candidates with career breaks or non-standard CVs) before any substantive assessment. Likewise, AI systems compiling performance records for reporting may substantially shape managerial decisions through dashboard design and automation bias. Where such preparatory tasks materially influence subsequent human decision-making, the Article 6(3)(d) exception should not apply.

3.5 Access to and enjoyment of essential services and benefits3.4 Employment

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

Please specify

500 character(s) maximum

Separating high-risk credit scoring from standalone pricing creates a dangerous loophole. Lenders can perform standard scoring but use biased AI pricing to set extortionate interest rates for marginalized groups, causing financial exclusion. This artificial separation teaches providers how to evade AI Act obligations (data governance, human oversight, FRIA) for the most discriminatory part of financial decisions. Section (3.5) must classify AI pricing as high-risk.

Do you have more suggestions?

- ☒ Yes
☐ No

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

- ☒ Yes
☐ No
☐ N/A

If so:

- a) please explain why do you think they should be treated as such and
b) if your suggested example(s) or use case(s) are to be considered as in or out of scope.

2500 character(s) maximum

320, p. 91

To ensure legal certainty, the guidelines should explicitly list excluded insurance sectors, such as motor, property, and liability. Annex III(5)(c) strictly limits high-risk AI to life and health insurance. As confirmed in Commission report COM(2026)234_0, potential risks in these non-life sectors are currently designated only for further monitoring and data collection, not high-risk classification under current rules.

3.6 Law enforcement

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ NA

Relevant paragraph number

Only values of at most 1000 are allowed

Please specify

500 character(s) maximum

The exceptions for group-based and geographic risks doesn't consider that geographic areas aren't demographically neutral. Districts often have communities of specific national, ethnic or religious origin. Higher police presence leads to more recorded incidents, which means the police will be even more active in those areas. We suggest classifying as high-risk. cont

Do you have more suggestions?

- ☒ Yes
☐ No

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

355

Please specify

500 character(s) maximum

The use of geographic data as input for AI systems may lead to prohibited indirect discrimination (Article 21 of the EU Charter). FRA documented Your rights matter: police stops that members of ethnic minorities and immigrants are stopped by the police much more often than the majority population. AI system that predicts an increased risk of crime in an area inhabited by a minority and subsequently generates recommendations for an increased police presence algorithmically reinforces this pattern

Do you have more suggestions?

- ☒ Yes
☐ No

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

360

Please specify

500 character(s) maximum

Guidelines doesn't address the controversial scientific basis of polygraphs and similar tools, even though they indirectly acknowledge it in other sections. The example of a system that transcribes an interview and records changes in tone or speech rate is insufficiently justified as being outside the scope. Although the system does not formally draw a conclusion about truthfulness, it provides signals from which an investigator can automatically draw such a conclusion. (cont)

Do you have more suggestions?

- ☒ Yes
☐ No

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

361

Please specify

500 character(s) maximum

cont We propose adding that systems that alert to physiological or vocal changes in the context of an interrogation fall under point 6(b), regardless of whether they explicitly draw a conclusion about truthfulness or not.

Do you have more suggestions?

- ☒ Yes
☐ No

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

364

Please specify

500 character(s) maximum

This point explicitly states authenticity verification as the core use case under point 6(c). System that classifies material as a deepfake is listed among the examples outside the scope, on the grounds that it merely filters and pre-selects material. This is internally contradictory. Determining whether material is a deepfake or an authentic recording is an assessment of the authenticity of evidence. We propose reclassifying systems that classify material as a deepfake as high-risk.

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

- ☒ Yes
☐ No
☐ N/A

If so:

a) please explain why do you think they should be treated as such and

b) if your suggested example(s) or use case(s) are to be considered as in or out of scope.

2500 character(s) maximum

366 The exception for systems that predict the locations and times of likely criminal offenses reiterates the same point identified in paragraphs 354–355. Districts and neighborhoods are not demographically neutral; crime predictions for a specific location may be related to the area’s ethnic or national composition. We propose that such AI systems also be classified as high risk.

371 Systems that detect unusual behaviour (running, raised arms, fighting stance) are classified as outside the scope on the grounds that they focus on behaviour rather than on a specific person. This justification doesn’t hold up. The system’s output identifies specific individuals for police intervention, and the impact on them is identical to that of systems that target specific individuals. We propose classifying systems whose output directly targets police intervention against specific individuals as high-risk, regardless of whether they are formally focused on behaviour or on the individual.

Guidelines do not cover AI systems designed to monitor the movements and compliance with conditions by individuals released from prison (or detention) as an alternative (such as electronic ankle monitors combined with AI analysis of movement patterns or risk assessments of condition violations). These systems may constitute an interference with the freedom of movement guaranteed by Article 6 of the EU Charter and may generate individual risk scores that influence decisions regarding re-detention. We propose classifying them as high-risk. They are currently out of scope, even though their impact on fundamental rights is comparable to systems assessing the risk of recidivism under point 6(d), which are classified as high-risk.

3.7 Migration, asylum and border control management

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance? Please indicate specific parts of the draft Guidelines (i.e., Section/subsection /paragraph(s) number).

- ☒ Yes
- ☐ No
- ☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

381

Please specify

500 character(s) maximum

The guidelines distinguish between intended use and the risk of misuse, but the SAR exception does not adequately reflect this distinction in the context of migration and border control. In the context of maritime migration, the shift from rescue to pushbacks is a documented practice, not a risk of misuse. (cont)

Do you have more suggestions?

- ☒ Yes
- ☐ No

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

403

Please specify

500 character(s) maximum

According to a 2022 OLAF report, Frontex knowingly redeployed aircraft to avoid witnessing pushbacks and deliberately failed to report incidents. The Hamoudi v. Frontex case (CJEU, Dec. 18, 2025) then demonstrated that the agency refused to submit to the courts data from Frontex surveillance systems present during pushback operations. Pushbacks represent a widespread form of border control, in which the outputs of detection systems are used to guide or coordinate operations. (cont)

Do you have more suggestions?

- ☒ Yes
☐ No

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
☐ No
☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

403

Please specify

500 character(s) maximum

In this context, the mere declaration of SAR as the intended use does not provide sufficient assurance that the system won't be used for border control. We propose to classify that AI systems as high-risk.

Do you have more suggestions?

- ☒ Yes

☐ No

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

☐ Yes

☐ No

☐ N/A

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

☒ Yes

☐ No

☐ N/A

If so:

a) please explain why do you think they should be treated as such and

b) if your suggested example(s) or use case(s) are to be considered as in or out of scope.

2500 character(s) maximum

Systems for procedural routing, triage, predictive case assignment or screening. These automatically evaluate data from the screening form to classify applicants either into the standard asylum procedure or into the mandatory border (accelerated) procedure under the Asylum Procedures Regulation.

The New Pact on Migration and Asylum changes the architecture of European asylum system by introducing the mandatory border procedure. This represents a specific form of proceedings with significantly shorter time limits, limited access to legal assistance, and a presumption of non-entry into the territory. The decision to place an applicant in this regime therefore has a drastic impact on the applicant's procedural status.

While the Pact establishes objective criteria for the mandatory border procedure, the application of these criteria on a mass scale at external borders will be subject to enormous time pressure. If AI systems are deployed for this triage, there is a high risk of algorithmic categorization. AI systems can combine statistical data with unstructured data from the initial screening and predict the likelihood of an application's success even before its substantive assessment.

This approach creates a direct risk of indirect discrimination and the systematic disregard of the individual specifics of a case. Error at this stage of algorithmic screening can predetermine the failure of an application, which directly threaten the right to asylum, the principle of non-refoulement, and the right to effective legal protection and a fair trial.

Section 7(c) covers AI assistance in the actual assessment of applications, not the critical phase.

Systems focused on the optimal matching, relocation, and internal placement of recognized refugees or asylum seekers within the host country based on predictions of their integration potential (like GeoMatch). They use machine learning to analyze personal characteristics and their synergy with the local geographic and economic context.

The purpose is not to control borders, assess the validity of asylum claims, or restrict personal freedom. They are tools for positive integration aimed at maximizing refugees' chances of successfully entering the labor market and achieving self-sufficiency in the host society. Systems work with demographic data, but their impact on fundamental rights is supportive.

To avoid legal uncertainty, we propose explicitly listing tools in Section 7(c) as an example outside the scope.

Contact

[Contact Form](#)